EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

THIRD SECTION

DECISION

Application no. 59470/11
Aydar Rustemovich SULTANOV and CHURCH OF SCIENTOLOGY NIZHNEKAMSK
against Russia

The European Court of Human Rights (Third Section), sitting on 11 May 2021 as a Committee composed of:

Darian Pavli, *President,*
Dmitry Dedov,
Peeter Roosma, *judges,*

and Olga Chernishova, *Deputy Section Registrar,*

Having regard to the above application lodged on 14 September 2011,

Having regard to the observations submitted by the respondent Government and the observations in reply submitted by the applicants,

Having deliberated, decides as follows:

THE FACTS

1. The first applicant is Mr Aydar Rustemovich Sultanov, a Russian national who was born in 1965 and lives in Nizhnekamsk, Tatarstan. He is one of the founders and a member of the second applicant, the Church of Scientology Nizhnekamsk, a religious group without legal-entity status. They were represented before the Court by Mr D. Holiner, a lawyer practising in London.

2. The Russian Government ("the Government") were initially represented by Mr G. Matyushkin, Representative of the Russian Federation to the European Court of Human Rights, and then by his successor in that office, Mr M. Galperin.

A. The circumstances of the case

3. The facts of the case, as submitted by the parties, may be summarised as follows.

4. On 28 October 1998 Mr Sultanov and fellow believers decided to found the Church of Scientology Nizhnekamsk.

5. On 23 December 1999 the applicant church applied to the State Registration Chamber of the Republic of Tatarstan for registration as a local religious organisation. The Registration Chamber refused to register the applicant church. Mr Sultanov unsuccessfully brought an action challenging this decision before a court. The Court found that the refusal had violated Article 9 of the Convention, read in the light of Article 11 (see *Kimlya and Others v. Russia*, nos. 76836/01 and 32782/03, §§ 72-102, 1 October 2009).

6. After the Court's judgment became final on 1 March 2010, Mr Sultanov asked the domestic courts to re-open the proceedings in connection with the Court's judgment.

7. On 26 April 2010 the Nizhnekamsk Town Court allowed his application and remitted the matter for fresh examination.

8. On 2 June 2010 the Nizhnekamsk Town Court held that the decision to refuse registration had been unlawful.

9. On 15 July 2010 the Supreme Court of the Republic of Tatarstan ordered the Justice Department to register the Church of Scientology Nizhnekamsk as a religious organisation.

10. However, on 16 March 2011, upon a request by the Ministry of Justice, the Supreme Court of Russia examined the case under supervisory review procedure. It agreed that the refusal to register the applicant church as a religious organisation had been unlawful but ruled that the Justice Department could not be required to perform registration because the registration procedure had to be started anew. It seems that no action followed.

11. On 19 July 2016 Mr Sultanov asked the Justice Department to proceed with the registration. He has not informed the Court of any reply.

12. On 20 July 2016 he notified the Justice Department that the Church of Scientology Nizhnekamsk had started its activities as a religious group.

B. Relevant domestic law and materials relating to execution of *Kimlya* judgment

13. After adoption of the *Kimlya and Others* judgment, the Religions Act (Federal Law No. 125-FZ of 26 September 1997) was amended to exclude the requirement for a religious organisation to have existed in a given territory for a minimum of 15 years. According to the Government, this provision has not been applied since 24 July 2015.

14. The execution proceedings of *Kimlya and Others* judgment are still pending before the Committee of Ministers. The applicants received compensations awarded by the Court in the above case. On 10 January 2014 the Government submitted an action report (DH-DD(2014)640) in which they stated that following a request made for the reopening of the

proceedings concerning the registration of the Church of Scientology Nizhnekamsk, the original refusal to register had been declared unlawful by a final judgment of 16 March 2011. Since then, the applicants had not submitted any new application for registration.

COMPLAINT

15. The applicants complained under Articles 9 and 11 about the authorities' refusal to register the Church of Scientology Nizhnekamsk as a religious organisation.

THE LAW

16. The applicants complained that the Supreme Court's refusal to order the applicant church's registration as a religious organisation had violated their right under Articles 9 and 11.

17. They stated that the Supreme Court had been obliged to order the Justice Department to register the applicant church as a religious organisation in order to redress the breach of Article 9 interpreted in the light of Article 11 found by the Court in its judgment of 1 October 2009. It was the Court, and not the Committee of Ministers, which was competent to examine their complaint as the domestic courts had taken new decisions and the compliance of those decisions with the Convention fell within the Court's jurisdiction.

18. The Government argued that the applicants' complaint was substantially the same as the one examined by the Court in the *Kimlya and Others* case. Therefore, this complaint *de facto* concerned the execution of the Court's judgment in that case. The applicants had not filed any new applications for registration. They asked to hold the application inadmissible.

19. The role of the Committee of Ministers, under Article 46 § 2 of the Convention, to supervise the execution of the Court's judgments, does not mean that measures taken by a respondent State to implement a judgment delivered by the Court cannot raise a new issue undecided by the judgment and thus form the subject of a new application that may be dealt with by the Court (see *Mehemi v. France (no. 2)*, no. 53470/99, § 43, ECHR 2003-IV, and *Verein gegen Tierfabriken Schweiz (VgT) v. Switzerland (no. 2)* [GC], no. 32772/02, § 62, ECHR 2009). Reference is made, in this context, to the criteria established in the case-law concerning Article 35 § 2 (b) of the Convention, by which an application is to be declared inadmissible if it "is substantially the same as a matter that has already been examined by the Court ... and contains no relevant new information" (see *Verein gegen Tierfabriken Schweiz (VgT)*, cited above, § 63).

20. The Court must therefore ascertain whether the present application contains relevant new information possibly entailing a fresh violation of Article 9 interpreted in the light of Article 11, for the examination of which the Court is competent *ratione materiae*, or whether it concerns only the execution of the initial application without raising any relevant new facts.

21. In the present case, after the Court's judgment in the *Kimlya and Others* case, Mr Sultanov asked the domestic courts to order the Justice Department to register the Church of Scientology as a religious organisation. Although the Supreme Court in its final decision on the case dismissed the applicant's request in part, at the same time, by holding that the refusal to register the applicant church was unlawful, it expressly accepted that a breach of Article 9 as interpreted in the light of Article 11 had occurred (see paragraph 10 above). Thus, by its decision it reaffirmed the position expressed by the Court in the *Kimlya and Others* judgment.

22. In these circumstances, the Supreme Court's decision was not based on relevant new grounds capable of giving rise to a fresh violation of Article 9 as interpreted in light of Article 11 (see *Steck-Risch and Others v. Liechtenstein* (dec.), no. 29061/08, 11 May 2010).

23. The applicants did not engage in any new registration proceedings (see, by contrast, *The United Macedonian Organisation Ilinden – PIRIN and Others v. Bulgaria (no. 2)*, nos. 41561/07 and 20972/08, § 64, 18 October 2011).

24. Moreover, the "fifteen-year rule" was removed from the Religions Act, in order to ensure that the violation found by the Court would not be repeated in future cases. The Government have paid the sums awarded to the applicants in the *Kimlya and Others* judgment (see paragraphs 13 and 14 above). As to other measures which might be taken to remedy the violations found, this is a matter of an on-going discussion between the Committee of Ministers and the respondent Government. Subject to monitoring by the Committee of Ministers, the respondent State remains free to choose the means by which it will discharge its legal obligation under Article 46 of the Convention, provided that such means are compatible with the conclusions set out in the Court's judgment. For its part, the Court cannot assume any role in this dialogue (see *Lyons and Others v. The United Kingdom* (dec.), no. 15227/03, 8 July 2003, and *Egmez v. Cyprus* (dec.), no. 12214/07, § 48, 18 September 2012).

25. Having regard to the foregoing finding that the Court is not competent to examine the applicants' complaint, the present application must be rejected as incompatible *ratione materiae* with the provisions of the Convention, pursuant to Article 35 §§ 3 and 4.

For these reasons, the Court, unanimously,

Declares the application inadmissible.

Done in English and notified in writing on 10 June 2021.

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Olga Chernishova
Deputy Registrar

Darian Pavli
President